SERGEANT BUZU TAKESURE

Versus

CHIEF SUPERINTENDENT OBERT GWIRIRI
(TRIAL OFFICER)

And

COMMISSIONER GENERAL OF POLICE

And

POLICE SERVICE COMMISSION

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
MASVINGO 3 March 2026

Application for review

M. Mugiya for the applicant
T. Undenge for the respondents

DUBE-BANDA J:

[1] This is an application for review of unterminated proceedings before the trial officer in terms of the Police Act [*Chapter 11:10*]. After hearing submissions from both counsel for the applicant and the respondents, and to facilitate the continuation of the trial in terms of the Police Act, in an *ex-tempore* judgment, I dismissed the application with costs. The applicant has requested written reasons for the dismissal of his application; this judgment provides such reasons.

[2] The applicant, aggrieved by the conduct of his trial, seeks an order couched in the following terms:

a) That the trial proceedings against the applicant presided over by the 1st respondent be and are hereby quashed and accordingly set aside.

b) The prosecution of the applicant in terms of the Police Act and, in particular, for contravening paragraph 35 of the Schedule to the Police Act, be and is hereby permanently stayed.
c) The 1st respondent are *(sic*) ordered to pay costs of suit on a client and attorney scale.

[3] The application is opposed by the three respondents.
[4] These background facts provide the context. The applicant is a member of the Zimbabwe Republic Police ("ZRP"). On 20 September 2022, he was charged, in the first trial, in terms of paragraph 35 of the Schedule to the Police Act [*Chapter 11:10*]. It being alleged that on 17 August 2022, and at house number 16 Baden Street, Rhodene, Masvingo, the applicant, being a member of the police service, did wrongfully and unlawfully receive or was found in possession of Zimbabwe Electricity and Telone transformer windings, burnt armored cables, bare copper conductors, and electricity copper rewinds.
[5] At the commencement of his trial, the applicant excepted to the charge on the grounds that the trial officer had no jurisdiction to try him for the offence. The trial officer dismissed the exception, and aggrieved by the decision, the applicant filed an application for review in this court. On 29 January 2024, this court (per ZISENGWE J) ordered as follows:

a) That the application for review is partially upheld.
b) The decision of the 1st respondent be and is hereby set aside.
c) The matter is hereby remitted to the court *a quo* with the following directions;
    i. The applicant to file written submissions on the grounds of exception upon which it relies in challenging the charge within 10 days of the order.
    ii. Thereafter the State to file its response thereto before oral arguments are heard on the grounds of exception.
    iii. The 1st respondent to pronounce itself on the jurisdiction and if need be on the exception.
    iv. No order as to costs for review.

[6] On 2 June 2025, the applicant appeared in the remitted trial before the second trial officer. For completeness, it is important to state that the applicant faced the same allegations as those in the first trial. He pleaded not guilty. After the plea of not guilty, he excepted to the charge on the grounds that the court had no jurisdiction to try him for the offence. In the context of this matter, it is important to summarize the basis of his exception, which, as a result of some confusion, he also referred to as a special plea. The applicant contended that the charge did not exist after the Police Act was amended in paragraph 35 of the Schedule. It was averred that the applicant, therefore, pleaded to nothing. It was further contended that even if the charge was valid, it would be improper to cause the applicant to plead to it without specifying the option for the allegations related to it. In addition, it was argued that the trial officer and the trial court had no jurisdiction to try the applicant for the charge and in the manner sought. This ground was based on the same contentions that the charge was repealed. It was further contended that he faced the same allegations at the Regional Court, and he was acquitted, and that dual prosecution was prohibited. The relief sought was that the exception be upheld and the court declines jurisdiction, or it makes a finding that the charge was fatally defective and quashes it.

[7] In its response, the prosecutor submitted that there was no amendment to the Police Act relating to offences and that the applicant was properly charged. It was argued that the applicant could not plead and except to the charge at the same time. Only one option was available to him. He should have excepted before he pleaded not guilty to the charge. In addition, it was argued that an acquittal in a criminal trial is not a bar to civil proceedings arising from the same circumstances. Therefore, the fact that the applicant was acquitted in the criminal trial was inconsequential. It was argued that the arguments for the defence have no merit and should be dismissed.

[8] On 30 July 2025, the court confirmed that it had received written submissions from both parties and ordered as follows:

> "The court is then convinced that trial should commence on the basis that the State dismissed your application. Therefore, is there any objection for the court to rule towards the commencement of the trial, defence counsel? Your application is dismissed."
>
> Defence counsel: "No objection."

[9] Subsequent to the dismissal of the application (exception), the matter was rolled over to 15 August 2025 for continuation of the trial. The applicant requested certain documents, and the prosecutor agreed to furnish the applicant with two of the requested documents, and declined to furnish the informer's file, citing that it contained privileged information.

[10] Before the date set down for the continuation of the trial, the applicant, on 1 August 2025, filed this application for review seeking the relief stated above. The applicant sought that the trial before the officer be stayed pending the finalization of this review application. It appears that his request was acceded to and the trial was put on hold pending the finalization of this application.

[11] The applicant sought the proceedings before the trial officer to be reviewed on the following grounds:

i. The first respondent acted in a grossly irregular manner in the manner he conducted the applicant's trial in that:
    a) He failed to make a decision to the applicant's exception in terms of the s 180(4) of the Criminal Procedure and Evidence Act and failed to deal with the issues preliminary to the trial proceedings.
    b) He unlawfully delegated the duty to deal or determine the applicant's exception to the trial public prosecutor.
    c) The applicant (*sic*) has taken too long to be finalized as a result of the respondent's failure to conduct the trial and appreciate the law which warrants an order for permanent stay of prosecution.
    d) The first respondent failed to determine that the applicant be dealt with in terms of s 48 of the Police Act.

[12] In summary, in his founding affidavit, the applicant contends that on 18 March 2025, he excepted to the charge. On 30 July 2025, the first respondent ruled that "the State has dismissed your application." The trial officer then ordered that the trial must proceed on the merits. It was further contended that no ruling was made against the exception, and therefore it was improper to proceed with the trial before a decision was made on the exception. In addition, the applicant

conceded that it was now over four years before the trial could be concluded, and it was an undesirable violation of his right in terms of s 69 as read with s 86(3)(c) of the Constitution. He avers further that he was acquitted of the same allegations at the Regional Court, Masvingo. He concludes his founding affidavit by contending that the trial is totally needless in that the law is clear that when a member is charged in terms of the ordinary law, the Commissioner General of Police must use that outcome to discipline the member in terms of s 48 of the Police Act, and not conduct a trial as in this case. He avers that the trial proceedings ought to be set aside and quashed, because they are meaningless and a violation of his right to a fair trial.

[13] In his answering affidavit, the applicant contended that the first respondent said the State dismissed the exception. It was alleged that he edited the handwritten record. Further, it is averred that if the first respondent dismissed the exception, he must show where and how he dismissed it.

[14] In summary, the first respondent contended that the application for an exception was not dismissed by the prosecutor, but by himself as the trial officer. It was averred that the trial officer made a ruling and dismissed the application for an exception. In addition, it was stated that it was the applicant who contributed to the delay in the finalization of the matter by making applications for a postponement. It was averred that an acquittal at the Regional Court has no relevance to his trial in terms of the Police Act. It was disputed that the applicant's right to a fair trial had been undermined. In his opposing affidavit, the third respondent argued that the applicant has not exhausted internal remedies, in that he did not appeal to the Police Service Commission.

[15] The trial of the applicant is pending before the trial officer in terms of the Police Act. Therefore, the first issue that I must determine is whether this matter is ripe for review. It is an established principle of our law that the superior courts will not ordinarily, by way of appeal or review, interfere with unterminated proceedings in a lower court. The court's power to interfere is exercised sparingly and in those cases where the court is satisfied that a grave injustice may result or where justice might not be obtained by other means. The court's reluctance to interfere in unterminated proceedings stems primarily from (a) the effect that such procedure has on the continuity of proceedings in the lower court; (b) the undesirability of hearing appeals and reviews piecemeal; and (c) the fact that redress by other means, such as

review or appeal, will ordinarily be available in due course. This position of the law was succinctly stated in *Mamombe and Another v Mushure N.O and Another* (4 of 2022) [2022] ZWCC 4 (10 June 2022) where the court said:

> "In a long line of cases from this jurisdiction and elsewhere, the admonition is repeatedly sounded and explained, that superior courts should be very slow in interfering with the unterminated proceedings of lower courts. The exception is made for cases where there is a gross irregularity or a wrong decision by the lower court that will seriously prejudice the rights of a litigant or accused person and which irregularity or wrong decision cannot be corrected by any other means. ……..
> The above admonition is sounded to a superior court that has inherent or legislatively-conferred review powers over the proceedings or decisions of the lower court. It is meant to guide the approach to be taken by such a court. This is so because the power to interfere with the unterminated proceedings of a lower court either permanently or as affording interlocutory relief, is nothing but an exercise of review jurisdiction by the superior court over the proceedings or decisions of the lower court. The authorities clearly establish the position at law that proceedings in a lower court or its decision are only interfered with if there is a gross irregularity in the proceedings or the interlocutory decision is clearly wrong. Both instances respectively encompass the common law review grounds of gross irregularity in the proceedings and/or gross unreasonableness in the decision. By established practice of the courts, it is thus accepted that the existence of these two grounds of review may, in appropriate circumstances, justify a superior court of competent jurisdiction interfering with the ongoing proceedings of a lower court."

[16] The first ground of review is that the first respondent failed to make a decision to the applicant's exception in terms of s 180(4) of the Criminal Procedure and Evidence Act and failed to deal with the issues preliminary to the trial proceedings. The factual position of this ground is not borne out by the record. The record shows that the exception was dismissed, although the trial officer referred to it as an application. The court unequivocally said, "Your application is dismissed." The use of the word application, instead of exception, does not detract from the fact that the case which was before the court was dismissed. Therefore, it is factually incorrect to contend that the court did not rule on the exception. The applicant might be aggrieved by the decision, but it does not mean there was no decision. Whether the decision to dismiss the exception was wrong is not of concern to this court at this stage of the proceedings. This is because this is a review, and a review does not attack the result, but the method of the proceedings. In *casu*, a decision was made, whether right or wrong is

inconsequential. This ground of review does not justify interference with unterminated proceedings before the trial officer. The applicant, at the end of the trial, if still aggrieved, may seek redress by other means, such as review or appeal.

[17] The second ground of review is that the first respondent unlawfully delegated the duty to deal with or determine the applicant's exception to the trial public prosecutor. Closely scrutinized, this ground of review conflicts with the first ground discussed above. This is because it suggests that a decision was indeed made, but by the prosecutor, and not by the first respondent. Reliance for this ground of review is that the court said, "the court is then convinced that trial should commence on the basis that the State dismissed your application." The *prima facie* view I take is that this was just a patent mistake on the part of the trial officer. In any event, this is not an issue that this court should concern itself with at this stage of the proceedings. Depending on the outcome of the trial, this is an issue that the applicant can take up by way of review or appeal at the conclusion of the trial. In other words, redress by other means, such as review or appeal, will ordinarily be available at the end of the trial. No grave injustice has been occasioned in this instance to warrant this court to interfere with unterminated proceedings before the trial officer.

[18] The third ground of review is that the application has taken too long to be finalized as a result of the respondent's failure to conduct the trial and appreciate the law which warrants an order for permanent stay of prosecution. This ground of review has not been properly thought out. An application for permanent stay of prosecution cannot reach this court by way of a review. The jurisprudence sets out the procedure of initiating and prosecuting such an application. See *Jabulani Sibanda* v *S* CCZ 4/17; *S* v *Manyara* CCZ 3/15; *In re Mlambo* 1991 (2) ZLR 339 (S); *S* v *Nhando & Others* 2001 (2) ZLR 84 (S); *S* v *Nkomo* SC 52-06. This is not an issue that this court can concern itself with at this stage of the proceedings.

[19] The fourth ground of review is that the first respondent failed to determine that the applicant be dealt with in terms of s 48 of the Police Act. Whether this is a case deserving of s 48 is not an issue of concern to this court at this stage of proceedings. In any event, the *prima facie* view I take is that s 48 has no relevance to this case. This is so because it talks of a member who has been convicted, the applicant was not convicted. Again, this is an issue, in conjunction with other issues, that may t be determined by the trial officer at the end of the trial. I agree

with the submissions by the respondents that no gross irregularity or a wrong decision by the trial officer has been made that will seriously prejudice the rights of the applicant which irregularity or wrong decision cannot be corrected by any other means.

[20] For completeness, I mention that it was inappropriate for the applicant to raise an exception after he had pleaded not guilty to the charge. An exception can only be properly taken before the excipient pleads to the merits of the matter. See *Tobacco Sales Producers (Pvt) Ltd* v *Eternity Star Invstms* 2006 (2) ZLR 293 (H) at 296 per C - D; *Kasukuwere* v *Mujaya & Ors* HH-562-19. In addition, counsel for the applicant agreed that the trial proceeds on the merits, and the applicant cannot turn around, without providing justification, and when convenient to him, and seek to undo what he consented to. Even on the merits, this argument that the trial officer has no jurisdiction appears to be frivolous and vexatious. A court does not lose jurisdiction because the accused has been charged in terms of a non-existent provision. In any event, this argument that the law was amended has no basis at all. A mere challenge to the jurisdiction, without cogent reasons, cannot justify interfering with unterminated proceedings. It appears to me that this application, in the context of the history of this matter, is an extension of the applicant's desire to stall his trial before the trial officer by whatever stratagem possible. In fact, I lost count of the number of times the applicant sought postponements both in the first and second trial. Courts should discourage preliminary litigation that appears to have no purpose other than to circumvent or stall due process. Although the court's doors should never be completely closed to litigants, courts should not entertain such litigation whose purpose appears merely to stall proceedings. In other words, courts should discourage intervening in unterminated proceedings that appear to have no purpose other than to delay or circumvent the course of justice.

[21] In conclusion, a case has not been made for this court to interfere with unterminated proceedings before the trial officer. It has not been shown that grave injustice may otherwise result or that justice might not be obtained by other means. It is for these reasons that I dismissed this application for review.

Mugiya Law Chambers, applicant's legal practitioners
Civil Division of the Attorney General's Office, respondent's legal practitioners